



DCJ,

Complainant,

-versus-

JCD,

Respondent.

X-----X

NPC 23-166

For: Violation of the
Data Privacy Act of
2012

DECISION

NAGA, P.C.;

Before this Commission is a Complaint¹ filed by DCJ (Complainant) against JCD (Respondent) for an alleged violation of Republic Act No. 10173 or the Data Privacy Act of 2012 (DPA).

Facts

On 01 August 2023, Complainant filed his Complaints-Assisted Form (CAF) alleging that Respondent, through a dummy Facebook account, threatened to post and publish the mugshots of the Complainant.² He claims that the Respondent JCD is Complainant's sister, and that RE is Respondent's live-in partner.³ Complainant states that last 01 December 2021, he was accused of violating RA 7610, for which he was detained at the Naga Police Station where RE was assigned.⁴ He states that his personal information was processed in said police station:⁵

MY PERSONAL INFORMATION WAS PROCESSED IN THE
POLICE STATION AND MY MUGSHOT WAS ALSO TAKEN

¹ Complaints-Assisted Form dated 12 July 2023 of DCJ.

² *Id.*, at p. 4.

³ *Id.*, at p. 4.

⁴ *Id.*, at p. 4.

⁵ Complaints-Assisted Form dated 12 July 2023 of DCJ, at p. 4.

THEREIN. LOGICALLY, RE WHO WAS A PERSONNEL IN THE POLICE STATION HAD ACCESS TO THESE INFORMATION THAT WAS COLLECTED AND PROCESSED. I WAS RELEASED ON 09 DECEMBER 2021.⁶

Complainant further alleges that on 23 April 2023, his partner, named PDS, received a chat message from a certain “XXX XXX XXX,” who Complainant believes was actually Respondent.⁷ He states:

I KNEW THAT IT WAS RESPONDENT JCD THAT WAS BEHIND THIS ACCOUNT BECAUSE IN THE COURSE OF MY CONVERSATION WITH THE ACCOUNT HOLDER, SHE EXPRESSED RESENTMENT ABOUT THE FACT THAT I WAS SUPPORTING XXX. ON THE SAME DATE, THE RESPONDENT JCD DID GOOD ON HER THREAT AND INDEED PUBLICLY POSTED MY MUG SHOT USING THE PUBLIC FACEBOOK ACCOUNT ABOVE MENTIONED.⁸

Complainant claims that he and “XXX,” who was also his sister, have been targeted by Respondent because of their personal conflicts.⁹ He also claims that Respondent acquired a copy of Complainant’s mugshots due to RE.¹⁰ He states:

THERE WAS NO WAY SHE COULD HAVE GOTTEN A COPY OF OUR MUG SHOTS, IF IT WERE NOT FOR HER LIVE-IN PARTNER RE’S ACCESS OVER THE RECORDS IN THE POLICE STATIONS WHERE WE WERE BOTH DETAINED. THE PERSON WHO ASSISTED US IN OUR BAIL BOND APPLICATION IS A BONDING AGENT NAMED DB. AS A MATTER OF FACT, PRIOR TO OUR ARREST AND DETENTION, RESPONDENT RE WAS THE ONE ASSISTING US. HE ADVISED US TO COMPLY WITH THE DOCUMENTARY REQUIREMENTS WHICH, WHICH WE COMPLIED WITH AND SUBMITTED TO HIM SOLELY FOR THE PURPOSE OF FACILITATING OUR RELEASE. NO OTHER PDL’S MUGSHOTS WERE POSTED OR LEAKED ONLINE, IT WAS ONLY MINE AND MY SISTER’S DAWN. WE HAVE A REASON TO BELIEVE THEREFORE, THAT BECAUSE OF HER AFFINITY TO RE, THE LATTER

⁶ *Id.*, at p. 4.

⁷ *Id.*, at p. 4.

⁸ *Id.*, at p. 4.

⁹ Complaints-Assisted Form dated 12 July 2023 of DCJ, at p. 4.

¹⁰ *Id.*, at p. 4.

UNLAWFULLY TOOK A COPY OF OUR MUGSHOT AND MALICIOUSLY DISCLOSED IT TO RESPONDENT DIANAHA.¹¹

Moreover, Complainant claims that Respondent made public threats to shame and humiliate him and XXX.¹² He states:

ASIDE FROM THIS, SHE ALSO MADE PREVIOUS PUBLIC THREATS TO SHAME AND HUMILIATE XXX AND I. IN HER FACEBOOK ACCOUNT, SHE PUBLICLY POSTED "MUGSHOT NO MORE 2023 IS THE KEY. TEST ME OR ELSE." ALONG WITH A PICTURE TEXT THAT SAYS "ONE STRIKE PA DAI SISTER NGA BITIN. TRENDING KAS 2023 RON." THIS COULD NOT HAVE BEEN MEANT FOR SOMEBODY ELSE AS XXX IS OUR ONLY SISTER ASIDE FROM JCD. SHE ALSO MESSAGED ME VIA MESSENGER BERATING ME FOR SUPPORTING MY SISTER "XXX" (THE NICKNAME WE CALL XXX). WHILE IT WAS XXX THE PROFILE WAS TRYING TO IMPERSONATE, THE SUBSTANCE OF THE MESSAGES SHOW THAT I WAS BEING BERATED BECAUSE OF MY SUPPORT OF XXX. TAKING THE THREATS, THE MANNER OF SPEAKING, THE ISSUE BEING USED, AS WELL AS PREVIOUS UTTERANCES AND POSTS, I COULD SAY THAT THE PERSON RESPONSIBLE BEHIND ALL OF THIS IS NO OTHER THAN THE RESPONDENT DIANAHA. ONLY SHE HAS THE CAPACITY AND MOTIVE TO DO THIS TO ME AND XXX.¹³

Further, Complainant alleged that Respondent had no authority or legal basis to access or disclose his mugshot, and that the purpose of obtaining the mugshots was to maliciously defame and destroy his reputation.¹⁴ He states:

RESPONDENT HAD NO AUTHORITY OR LEGAL BASIS TO ACCESS, MUCH LESS PUBLICLY DISCLOSE OR PUBLISH THE MUGSHOT, BEING A PRIVATE INDIVIDUAL DUE TO HER CLOSE AFFINITY TO RESPONDENT SPO1 ELORDE, BEING THE FORMER'S LIVE-IN PARTNER AND MISTRESS, SHE WAS ABLE TO OBTAIN A COPY OF OUR MUG SHOT TO PUBLICLY AND MALICIOUSLY DEFAME AND DESTROY OUR REPUTATION, AS WELL AS EMBARRASS US. THIS INTENTION MAY BE GLEANED FROM THE THREATS

¹¹ *Id.*, at p. 4.

¹² *Id.*, at p. 4.

¹³ Complaints-Assisted Form dated 12 July 2023 of DCJ, at p. 4.

¹⁴ *Id.*, at p. 4.

SENT TO ME, RESPONDENT SAID "XXX IKAW NAPOD
SUNOD AKONG GUB-ON PUSLAN MAN TANAWON
NATOG DAWATON PABA KAG TRABAHO SA MGA
MALLS IGKA TRENDING NEMO..XXX" ("I WILL DESTROY
YOU NEXT, LET'S SEE IF YOU'D STILL BE ABLE TO LAND A
JOB [IN MALLS] ONCE YOU TREND ONLINE...")¹⁵

In his CAF, Complainant attached various screenshots, which included:

- i. Screenshots of messages sent from the Messenger application from a certain "XXX," which included the alleged mugshots of Complainant and his sister XXX;
- ii. Screenshots of chats to a certain XXX by the owner of the account "XXX;"
- iii. Screenshots of what appears to be a Facebook post by one "XXX" showing Complainant's and his sister, XXX mugshots;
- iv. Screenshots of XXX mugshots which appears to have been sent to a certain RYE; and
- v. Screenshot of a Facebook post by a certain DN which reads, "Mugshot no more 2023 is the key. Test me or else. One strike pa dai sister nga bitin. Trending kas 2023 ron."¹⁶

Complainant alleges that his concern was elevated by his sister, DCJ, to the barangay, but to no avail. ¹⁷

In his prayer, Complainant referred to Section 59 of the Implementing Rules and Regulations of the Data Privacy Act, stating that "ANY PERSONAL INFORMATION CONTROLLER OR PERSONAL INFORMATION PROCESSOR, OR ANY OF ITS OFFICIALS, EMPLOYEES, OR AGENTS, WHO DISCLOSES TO A THIRD PARTY PERSONAL INFORMATION WITHOUT THE CONSENT OF THE DATA SUBJECT SHALL BE SUBJECT TO IMPRISONMENT AND FINE."¹⁸ Further, Complainant indicated that he prays for the initiation or institution of a criminal action.¹⁹

¹⁵ *Id.*, at p. 4.

¹⁶ *Id.*, Annexes "B" and "C."

¹⁷ Complaints-Assisted Form dated 12 July 2023 of DCJ, at p. 3.

¹⁸ *Id.*, at p. 6.

¹⁹ *Id.*, at p. 6.

Subsequently, the Complaints and Investigation Division (CID) of the National Privacy Commission (NPC) issued an Order dated 11 September 2023 requiring the Respondent to file her Verified Comment within fifteen (15) calendar days from receipt.²⁰ In the same Order, the parties were likewise required to virtually appear for a Preliminary Conference on 09 November 2023 and 01 February 2024 via Microsoft Teams.²¹

Accordingly, Respondent filed her Verified Comment dated 13 October 2023 denying the allegations laid down by Complainant in his CAF.²² Respondent denied that RE (RE) is her live-in partner as the latter is just an acquaintance of the former.²³

Further, Respondent alleged that Complainant and XXX (XXX) were charged of violating R.A. 7610 (Special Protection of Children Against Abuse, Exploitation and Discrimination Act), and were arrested as a result.²⁴ Respondent also argued that she has not seen any public post nor screenshot of Complainant's mugshots on Facebook.²⁵ Respondent countered that the pieces of evidence submitted by Complainant are private messages on the Messenger application, and the photos were fabricated and that "[t]here is no evidence submitted that [these] belong[] to [Respondent]."²⁶ She stated:

That during the arrest of DCJ in 2021, RE was not assigned in the PNP City of Naga but in PNP, Minglanilla station. I have never seen any public post nor screenshot of mugshots of DCJ on Facebook. The printed evidence shown is a private message in the messenger while the photos are fabricated/photo shop. There is no evidence submitted that it belongs to me;²⁷

²⁰ NPC 23-166 (*unreported*), Order (To File Verified Comment and Appear Virtually for Preliminary Conference) of the Complaints and Investigation Division of the National Privacy Commission dated 11 September 2023, at p. 1.

²¹ *Id.*, at p. 2.

²² Verified Comment dated 13 October 2023 of JCD, at ¶ 2.

²³ *Id.*, at ¶ 3.

²⁴ *Id.*, at ¶ 5.

²⁵ *Id.*, at ¶ 6.

²⁶ Verified Comment dated 13 October 2023 of JCD, at ¶ 6.

²⁷ *Id.*, at ¶ 6.

In addition, Respondent stated that the “the dummy account XXX is not owned by RE,” and that “the case of XXX filed before the RIAS PRO7 against RE was dismissed for lack of Probable Cause.”²⁸ In relation to Respondent’s allegation of dismissal, Respondent attached a memorandum indicating that the Pre-Charge Investigator of Elorde’s case recommended that the case against Elorde be “DROPPED and CLOSED for lack of probable cause.”²⁹

Respondent denied being the owner of the Facebook account “JCD,” and argued that it is Dawn who is good in making dummy accounts or making up stories.³⁰ Respondent added:

That I have a witness who can testify that the facebook accounts “JCD”; “JCD” & “JCD” are created by XXX which is stated on the aforesaid complaint I filed against XXX with resolution already. There are previous conversations in the messenger of said accounts which will “identify it” despite how many times you change the profile pictures or profile names;³¹

That I specifically deny the alleged threatening post considering that Dawn has so many enemies in our place[.]³²

...

That I strongly deny the threatening chat messages to XXX and DCJ. Their allegations were not accepted by the Regional Anti-Cybercrime Unit (RACU) when they attempted to file a case against me using the said dummy account. When their case did not prosper, again they filed it before this Honorable National Privacy Commission to harass me and as a leverage on my criminal complaint against XXX for three counts of violation of sec 4(c)(4) of RA 10175 Cyber Libel Law.³³

On 27 October 2023, the CID issued an Order noting the Verified Comment filed by the Respondent and reminding the parties to

²⁸ *Id.*, at ¶ 9; *see also* Annex “A.”

²⁹ *Id.*, at ¶ 9; *see also* Annex “A.”

³⁰ Verified Comment dated 13 October 2023 of JCD, at ¶ 10.

³¹ *Id.*, at ¶ 11.

³² *Id.*, at ¶ 12.

³³ *Id.*, at ¶ 13.

appear virtually for preliminary conference on 09 November 2023 and 01 February 2024 via Microsoft Teams.³⁴

During the first preliminary conference on 09 November 2023, both parties appeared and manifested that they are not availing of discovery, nor are they willing to explore the possibility of a settlement.³⁵ In view thereof, the parties were required to submit their respective memoranda pursuant to Section 2, Rule VII of the 2021 Rules of Procedure of the NPC containing discussions and summaries of their causes of action, claims, and defenses.³⁶

On 21 November 2023, Complainant, through an email, requested for an extension, until 01 December 2023, to submit his Memorandum,³⁷ which the CID granted through an Order dated 22 November 2023.³⁸

On 24 November 2023, Complainant submitted his Memorandum stating that Respondent illegally obtained Complainant's private data:

Respondent JCD illegally obtained private data stored in the Philippine National Police Station in the City of Naga, Cebu. The private data was only stored in such agency since it was a booking photograph taken when the Complainant was arrested in an unrelated case. Respondent should not have possessed the photograph to begin with unless otherwise she unlawfully accessed the files stored in the said Police Station.

The fact that she actually possessed the photograph is a prima facie evidence that she illegally and without authority obtained the same by accessing the files limited only to PNP personnel in Naga Police Station.³⁹

³⁴ NPC 23-166 (*unreported*), Order (on the Respondent's Verified Comment) of the Complaints and Investigation Division of the National Privacy Commission dated 27 October 2023.

³⁵ NPC 23-166 (*unreported*), Order (After the 1st Preliminary Conference held on 09 November 2023) of the Complaints and Investigation Division of the National Privacy Commission dated 09 November 2023.

³⁶ *Id.*, at pp. 1-2.

³⁷ Electronic mail dated 21 November 2023 from DCJ.

³⁸ NPC 23-166 (*unreported*), Order (on the Complainant's Email Motion for Extension of Time to Submit Memorandum) of the Complaints and Investigation Division of the National Privacy Commission dated 22 November 2023.

³⁹ Memorandum dated 24 November 2023 of DCJ, at pp. 3-4.

Complainant argued that the said act constitutes a violation of Section 29 of the DPA or Unauthorized Access or Intentional Breach because the Respondent, “without authority maliciously disclosed to the public by publicly posting the said mugshot in the social media platform Facebook through the account name “XXX” to the detriment and damage of the [C]omplainant.”⁴⁰

Finally, Complainant averred that he is adopting the pieces of evidence already attached to his Complaint.⁴¹

Subsequently, Respondent submitted her Memorandum dated 12 December 2023, arguing that Complainant failed to exhaust remedies pursuant to Section 2, Rule II of the 2021 NPC Rules of Procedure.⁴² Respondent stated that the Complaint failed to exhaust remedies, as well as to warrant the waiver of such requirement.⁴³ Moreover, Respondent argued that:

[T]his complaint only has allegations and speculations that the user of the account named “XXX” is the Respondent. The Complainant has the burden of proving the identity of the person who violated their privacy rights in the required quantum of evidence. In this case, however, there has been no positive identification and proof of the identity of the user of the Account named “XXX.”⁴⁴

In citing the Supreme Court decision *Romulo Natividad v. Court of Appeals*, Respondent stated that since the identity of the perpetrator who is the user of the Facebook Account “XXX” has not been proved by substantial evidence, the Commission should not have given this case due course.⁴⁵

Moreover, Respondent denied violating Section 29 of the DPA, arguing that Complainant was not able “to demonstrate by substantial evidence the very corpus delicti of the crime which is the instance that the Respondent breaks into the data system where

⁴⁰ *Id.*, at p. 4.

⁴¹ *Id.*, at p. 4.

⁴² Memorandum dated 12 December 2023 of DCJ, at p. 4.

⁴³ *Id.*, at p. 5.

⁴⁴ *Id.*, at p. 5.

⁴⁵ *Id.*, at p. 6.

personal or sensitive personal information of their mugshots is stored.”⁴⁶ Respondent further stated that considering that Complainant based his allegations on mere suspicion and speculation, his claim should not be given credence, and thus his complaint must be dismissed for lack of merit.⁴⁷

Issues

- I. Whether the case should be dismissed outright for failure of the Complainant to exhaust administrative remedies; and
- II. Whether Complainant sufficiently proved his allegations against Respondent with substantial evidence.

Discussion

The Commission dismisses the complaint for lack of substantial evidence.

- I. The Commission validly exercised its authority to resolve the case on the merits.*

In her submissions, Respondent alleged that Complainant failed to exhaust administrative remedies because his complaint “has also not alleged and proved the justification to warrant the waiver of the requirement of prior exhaustion of remedies.”⁴⁸

Section 2, Rule II of NPC Circular No. 2021-01 (2021 NPC Rules of Procedure) provides:

SECTION 2. Exhaustion of remedies. – No complaint shall be given due course unless it has been sufficiently established and proven that:

⁴⁶ Memorandum dated 12 December 2023 of JCD, at p. 7.

⁴⁷ *Id.*, at p. 7.

⁴⁸ *Id.*, at p. 5.

1. the complainant has informed, in writing, the personal information controller (PIC), personal information processor (PIP), or concerned entity of the privacy violation or personal data breach to allow for appropriate action on the same; and
2. the PIC, PIP, concerned entity did not take timely for appropriate action on the claimed privacy violation or personal data breach, or there is no response from the PIC, PIP, or concerned entity within fifteen (15) calendar days from receipt of written information from the complainant.

The NPC may waive any or all of the requirement of this Section at its discretion upon (a) good cause shown, properly alleged and proved by the complainant; or (b) if the allegations in the complaint involve a serious violation or breach of the Data Privacy Act of 2012, taking into account the risk of harm to the affected data subject, including but not limited to:

- i. when there is grave and irreparable damage which can only be prevented or mitigated by action of the NPC;
- ii. when the respondent cannot provide any plain, speedy, or adequate remedy to the alleged violation; or
- iii. the action of the resident is patently illegal.⁴⁹

As stated, the Commission may, at its discretion, waive any of the conditions precedent upon (a) good cause shown, properly alleged and proved by the complainant; or (b) if the allegations in the complaint involve a serious violation or breach of the Data Privacy Act of 2012, taking into account the risk of harm to the affected data subject.⁵⁰

Here, Complainant's allegations, if substantially proven, may lead the Commission to conclude that there was a serious violation of the DPA, more so that the processing involved sensitive personal information, specifically because the mugshots contain information relating to "any proceeding for any offense committed or alleged to

⁴⁹ National Privacy Commission, Rules of Procedure of the National Privacy Commission, NPC Circular 2021-01, rule II, § 2 (28 January 2021) (NPC Circular 2021-21).

⁵⁰ *Id.*

have been committed by such person, the disposal of such proceedings, or the sentence of any court in such proceedings.”⁵¹

To emphasize, “the rules of procedure should be viewed as mere tools designed to facilitate the attainment of justice. Their strict and rigid application, which would result in technicalities that tend to frustrate rather than promote substantial justice, must always be eschewed.”⁵²

As such, the Commission finds it appropriate to exercise its authority to resolve the case on the merits.

II. The Complainant failed to provide substantial evidence to support his allegation of a violation of Section 29 of the DPA.

In this case, Complainant has the burden to prove by substantial evidence that Respondent violated Section 29 of the DPA. However, Complainant failed to provide sufficient evidence to substantiate the allegations he made in his complaint. In one of the cases decided by the Commission, it stated that “in administrative proceedings, the burden is on the Complainant to prove by substantial evidence the allegations in his Complaint are true.”⁵³

For complaints before the Commission to prosper, the burden of proof required is substantial evidence, or “that amount of relevant evidence that a reasonable mind might accept as adequate to support a conclusion.”⁵⁴ The Supreme Court, in a plethora of cases explained that:

⁵¹ An Act Protecting Individual Personal Information in Information and Communications Systems in the Government and the Private Sector, Creating for This Purpose a National Privacy Commission, and for Other Purposes [Data Privacy Act of 2012], Republic Act No. 10173, chapter I, § 3 (I) (2012).

⁵² *Heirs of Amada Zaulda v. Zaulda*, G.R. No. 201234, 17 March 2014.

⁵³ *JLB v. Security Bank Corporation*, CID-18-D-009, Decision dated 18 March 2021 at p. 4.

⁵⁴ *De Jesus v. Guerrero III*, G.R. No. 171491, 04 September 2009.

[T]he complainant has the burden of proving by substantial evidence the allegations in his complaint. The basic rule is that mere allegation is not evidence and is not equivalent to proof. Charges based on mere suspicion and speculation likewise cannot be given credence.⁵⁵

Rule 131 of the 2019 Amendments to the Revised Rules on Evidence also provides:

Section 1. Burden of proof and burden of evidence. - **Burden of proof is the duty of a party to present evidence on the facts in issue necessary to establish his or her claim or defense by the amount of evidence required by law.** Burden of proof never shifts.

Burden of evidence is the duty of a party to present evidence sufficient to establish or rebut a fact in issue to establish a prima facie case. Burden of evidence may shift from one party to the other in the course of the proceedings, depending on the exigencies of the case.⁵⁶ (Emphasis supplied)

Based on the records and pieces of evidence submitted by Complainant, it was alleged that Respondent violated Section 29 of the DPA for Unauthorized Access or Intentional Breach.

Unauthorized Access or Intentional Breach under Section 29 of the DPA provides:

SEC. 29. Unauthorized Access or Intentional Breach. - The penalty of imprisonment ranging from one (1) year to three (3) years and a fine of not less than Five hundred thousand pesos (Php500,000.00) but not more than Two million pesos (Php2,000,000.00) shall be imposed on persons who knowingly and unlawfully, or violating data confidentiality and security data systems, breaks in any way into any system where personal and sensitive personal information is stored.⁵⁷

⁵⁵ *Id.*

⁵⁶ 2019 Amendment to the 1989 Revised Rules on Evidence, A.M. No. 19-08-15-SC, Rule 131, Section 1.

⁵⁷ An Act Protecting Individual Personal Information in Information and Communications Systems in the Government and the Private Sector, Creating for This Purpose a National Privacy Commission, and for Other Purposes [Data Privacy Act of 2012], Republic Act No. 10173, chapter VIII, § 29 (2012).

To be held liable under Section 29 of the DPA, the following requisites must concur:

1. The data system stores personal or sensitive personal information;
2. The accused breaks into the system; and
3. The accused knowingly and unlawfully broke into the system in a manner which violates data confidentiality and security of the same.⁵⁸

A data system under the first requisite may be any system which stores personal or sensitive personal information. Here, the first requisite is present considering that the PNP's data system is the repository of mugshot photographs of a suspect taken after he or she is arrested.

However, the second requisite is absent. There is no clear showing that Respondent broke into PNP's data system where the mugshot photographs are stored. Complainant failed to show that Respondent actually accessed the mugshots alleged to have been disclosed by the latter. Complainant alleged that the mugshots were accessed thru SPO1 Elorde who allegedly was the live-in partner of Respondent and was also the assigned personnel at the police station.⁵⁹

It should be noted that these allegations, by themselves, do not hold water. Aside from these speculations, Complainant failed to prove by substantial evidence that RE was the one who provided Respondent with access to the mugshots. The Commission thus reiterates that charges based on mere suspicion and speculation cannot be given credence.⁶⁰

Likewise, Complainant submitted screenshots of private messages, on Messenger application, allegedly sent by the Respondent hiding in the persona of "XXX,"⁶¹ which also contained the mugshots of

⁵⁸ RGC v. JK Incorporated and Recovery Inc., NPC 21-054, Decision dated 22 September 2022, at p.11.

⁵⁹ Complaints-Assisted Form dated 12 July 2023 of DCJ, at p. 4.

⁶⁰ *De Jesus v. Guerrero III*, G.R. No. 171491, 04 September 2009.

⁶¹ Complaints-Assisted Form dated 12 July 2023 of DCJ, Annex "B."

Complainant and his sister Dawn.⁶² However, these pieces of evidence are not sufficient to prove that there was unauthorized access to the mugshots of Complainant.

Complainant further alleged that it is the Respondent who is responsible for the creation of the dummy account “XXX” who made public threats to shame and humiliate him and his sister XXX.⁶³ Nonetheless, Complainant failed to prove by substantial evidence any nexus between the dummy Facebook account and Respondent.

Finally, the third requisite is also absent. Considering that Complainant failed to establish by substantial evidence that Respondent broke into the PNP’s data system, examining the manner by which she allegedly broke into the system would evidently prove to be a fruitless endeavor. It follows that Complainant also failed to prove that Respondent knowingly and unlawfully breached the system in a manner that violated its data confidentiality and security.

Thus, for failure to prove by substantial evidence the Complainant’s allegations that Respondent committed an unauthorized access to the PNP’s data system which resulted in the disclosure of his mugshot photos, Respondent cannot be held liable for a violation of Section 29 of the DPA.

WHEREFORE, premises considered, this Commission resolves that the instant Complaint filed by **DCJ** (Complainant) against **JCD** (Respondent) is hereby **DISMISSED** for lack of substantial evidence.

This is without prejudice to the filing of appropriate civil, criminal or administrative cases against the Respondent before any other forum or tribunal, if any.

SO ORDERED.

City of Pasay, Philippines.
17 October 2024.

⁶² *Id.*

⁶³ *Id.*, at p. 4.

SGD
JOHN HENRY D. NAGA
Privacy Commissioner

WE CONCUR:

SGD
LEANDRO ANGELO Y. AGUIRRE
Deputy Privacy Commissioner

SGD
NERISSA N. DE JESUS
Deputy Privacy Commissioner

Copy furnished:

DCJ
Complainant

JCD
Respondent

COMPLAINTS AND INVESTIGATION DIVISION
ENFORCEMENT DIVISION
GENERAL RECORDS UNIT
National Privacy Commission